

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
RYHEM MONTAGUE,

Plaintiff,

-against-

SUMMONS

Plaintiff designates
BRONX County as the
place of trial

CITY OF NEW YORK, P.O. MARIELA ORTEGA,
P.O. DANIEL BLAKE and OFFICER[S] JOHN AND
JAMES DOE, names being fictitious and presently
unknowable by Plaintiff and meant to designate
additional offending officers,
Defendants.

The basis of venue is:
CPLR 504 (3)

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.
October 18, 2017


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007
P.O. Mariela Ortega Shield No. 2975 and P.O. Daniel Blake Shield No 7518
both of the PSA 7 737 Melrose Avenue, Bronx, NY 10451

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
RYHEM MONTAGUE,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, P.O. MARIELA ORTEGA,
P.O. DANIEL BLAKE, and OFFICER[S] JOHN AND
JAMES DOE, names being fictitious and presently
unknowable by Plaintiff and meant to designate
additional offending officers,

Defendants.
-----X

Plaintiff, by his attorney, Jonathan L. Gleit, Esq., complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF RYHEM MONTAGUE

1. At the time of the commencement of this action, plaintiff RYHEM MONTAGUE
was and still is a resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and
State of New York.

3. That at all times herein mentioned, Defendants CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.

5. That on and about August 16, 2016, P.O. MARIELA ORTEGA was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

6. That on and about August 16, 2016, at approximately 6 P.M. P.O. MARIELA ORTEGA was working and acting within the scope of her employment as a Police Officer, and under the color of law.

7. That on and about August 16, 2016, P.O. DANIEL BLAKE was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

8. That on and about August 16, 2016, at approximately 6 P.M., P.O. DANIEL BLAKE was working and acting within the scope of his employment as a Police Officer, and under the color of law.

9. That on and about August 16, 2016, OFFICER[S] JOHN AND/OR JAMES DOE, whose names are presently unknowable by Plaintiff but known to Defendants as officers who were involved in the arrest, detention and prosecution of Plaintiff, were

employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE
DEPARTMENT.

10. That on and about August 16, 2016, at approximately 6 P.M., OFFICER[S] JOHN
AND/OR JAMES DOE were working and acting within the scope of their employment
as a Police Officer[s], and under the color of law.

11. That on or about August 16, 2016 at approximately approximately 6 P.M., at or
near the opposite of 498 East 169th Street, Bronx, New York, the plaintiff RYHEM
MONTAGUE was improperly stopped, questioned, searched, detained, arrested and
confined without privilege, knowledge of warrant, proper authority nor justification,
having no reason in law or in fact to arrest or confine RYHEM MONTAGUE.

12. That the defendants, their agents, servants and/or employees arrested the
plaintiff RYHEM MONTAGUE without any basis in law or fact and without reasonable,
probable or just cause or justification.

13. That the defendants, their agents, servants and/or employees arrested the
plaintiff RYHEM MONTAGUE without any basis in law or fact, by making false
accusations against him, when they knew, or in the exercise of reasonable care, should
have known they were false.

14. That the defendants, their agents, servants and/or employees unlawfully stopped, questioned, searched, detained, arrested and confined the plaintiff RYHEM MONTAGUE, who was aware of his unlawful detention and confinement and took his property without any basis in law or fact, thereby causing fright, shock, emotional distress and physical consequences.
15. That at the above time and place plaintiff was lawfully present on the sidewalk thereat when he was approached by Defendants.
16. That P.O. DANIEL BLAKE approached plaintiff without cause or under false pretense, stopped, questioned and detained plaintiff and falsely alleged that plaintiff had littered, and issued him a summons.
17. The while unlawfully detaining Plaintiff, defendants began to illegally search Plaintiff, although there was no indication that he possessed any illegal items.
18. That defendants reached into Plaintiff's front pocket and retrieved a legal pocket knife.
19. Despite the wrongful stop, questioning, detention and search of Plaintiff, the defendants did arrest plaintiff for possession of an illegal knife, despite the fact that the knife in question was legal.

20. That the CITY OF NEW YORK and the named defendants did falsely and wrongfully arrest plaintiff without probable or reasonable cause nor knowledge of warrant, intended to and did confine plaintiff without his consent, which non-privileged confinement plaintiff was consciously aware of and did initiate a criminal proceeding without probable cause maliciously.

21. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy, practice and procedure known as the 'stop, question and frisk' program when individualized reasonable or probable cause does not exist, as occurred to the plaintiff herein. Furthermore, in the action brought in the United States District Court, Southern District of New York, Case 08-CV-01034, DAVID FLOYD, LALIT CLARKSON, DEON DENNIS and DAVID OURLICHT, individually and on behalf of a class of all others similarly situated against CITY OF NEW YORK, et al, the Honorable Shira A. Scheindlin, found that based upon the facts and evidence presented in that court, including that between 2004 and 2008 2.8 million people were subject to stops by the NEW YORK CITY POLICE DEPARTMENT, and only 10% of those were caucasians, while 50% were black and 30% were hispanic, and that the action was only brought after a 2003 settlement expired which intended to remedy racial disparities in such stops failed to alleviate the practice, and in fact the defendants expressly continued the

practice, primarily against young male minority populations, and the court found that the policy resulted in vast amounts of racially based Fourth Amendment violations.

22. Moreover, patterns of such wrongful 'stop and frisk' arrests, as detailed in the Floyd, et al. v. City of New York, et al. litigation, is additionally demonstrated by the wrongful stop and frisk of DEVON JOHNSON on January 30, 2012 in front of 315 East 143rd Street, Bronx, New York; and DANIEL AGUERO February 9, 2011, at the corner of East 171st Street and Grand Concourse; and ORLANDO GONZALEZ on April 8, 2011, in front of 2717 Decatur Avenue, Bronx, New York; and KARACHE JACOBS who was subject to a wrongful stop and frisk on June 11, 2015 across from 308 East 183rd Street, Bronx, NY , and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OR NEW YORK agencies and departments.

23. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly arresting innocent citizens, and engaging in a policy and procedure of arresting persons without individualized reasonable or probable cause for nefarious, unlawful reasons, including to satisfy arrest quotas, and/or to attempt to justify their own wrongful conduct, and without probable or reasonable

cause, and repeatedly providing false information and testimony without reprimand to the offending officers.

24. That said illegal and unlawful arrests of innocent persons without reasonable or probable cause and conducting searches in public and while in custody when there is no reasonable basis to conduct a search and without individualized reasonable suspicion of the secreting of evidence, are a matter of policy and record and openly acknowledged or known by the defendants and their supervisors, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein and evidenced by the large amount of dismissals of criminal charges under similar circumstances.

25. Said policy, practice and procedure of having arrest quotas and/or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeney, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

26. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system at the 40th Precinct in 2009

and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department, in addition to multiple other officers who have alleged, in court and in public, that such a practice exists to the detriment of the police department and public, including as documented in the case of Stinson, et al. v City of New York, et al., 10-cv-4228 (RWS) with respect to unlawfully issued summons.

27. Furthermore, the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly arresting innocent citizens for possession of gravity knives when, in fact, the knives in question were legal and lawfully possessed.

28. Furthermore the Defendants has a policy, practice and procedure of stopping, questioning and searching innocent primarily male minority males under the pretext of possessing gravity knives while claiming to observe what appeared to be a knife without determining, or being able to determine, that the knife was an illegal gravity knife, and in arresting persons who possessed a legal knife and falsely claiming that said legal knife was an illegal gravity knife.

29. Multiple innocent persons have been subjected to said illegal practice, including, but by no means limited to Ernest Brannon on September 8, 2006; Bernard Perez,

Jonathan Worthy, William Urrego, Kenny Brock in September 2014, David Quiles on July 7, 2015 and multitudes of others known to the Defendants by virtue of the claims and actions they brought, and brought by knife rights activists

30. That no negligence or actions on the part of the plaintiff RYHEM MONTAGUE contributed to the occurrences alleged herein in any manner whatsoever.

31. The herein above described actions and omissions, engaged in under the color of law by the defendants and their supervisors and commanders, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., and the named defendants' supervisors, including policy makers, by policy, institutionalized procedure and act, deprived the plaintiff RYHEM MONTAGUE of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of his person, the Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, the Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

32. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

33. That as a result of the foregoing, the plaintiff RYHEM MONTAGUE was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF RYHEM MONTAGUE

34. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 33 as though more fully set forth herein.

35. That on or about March 2, 2017, by Order to Show Cause, by Index No. 260057/2017 in Bronx County Supreme Court, plaintiff caused a Notice of Claim, deemed timely thereunder, to be presented to the defendant CITY OF NEW YORK, by delivering a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

36. Said Order dated March 2, 2017 required the CITY OF NEW YORK to Notice Plaintiff of a General Municipal Law §50h hearing within 60 days of said Order.

37. More than 60 days has since passed and the CITY OF NEW YORK has failed or neglected to Notice Plaintiff of a General Municipal Law §50h hearing.

38. This action was commenced on the claim within one year and ninety days after the happening of the events upon which the claims are based or within the time allowed by law.

39. That on or about August 16, 2016 at approximately 6 P.M., at or near the opposite of 498 East 169th Street, Bronx, New York, the plaintiff RYHEM MONTAGUE was improperly stopped, questioned, searched, detained, arrested and confined without privilege, knowledge of warrant, proper authority, justification nor reasonable or probable cause, having no reason in law or in fact to stop, question, search, detain or arrest RYHEM MONTAGUE.

40. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff RYHEM MONTAGUE of Due Process under Law.

41. That the acts of the Defendants, CITY OF NEW YORK, their agents, servants and / or employees, NEW YORK CITY POLICE DEPARTMENT, P.O. MARIELA ORTEGA, P.O. DANIEL BLAKE and OFFICER[S] JOHN AND/OR JAMES DOE were acts of discrimination, were racist, and improper, and that the defendants' actions amounted to False Arrest, and the defendants were otherwise careless, reckless and negligent.

42. That the plaintiff RYHEM MONTAGUE, being aware of his unjust confinement, suffered severe and serious physical, emotional and psychological trauma, damages and injuries due to the negligence, carelessness and recklessness of Defendants CITY OF NEW YORK, P.O. MARIELA ORTEGA, P.O. DANIEL BLAKE and OFFICER[S] JOHN AND/OR JAMES DOE.

43. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

44. That as a result of the foregoing, the plaintiff RYHEM MONTAGUE was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF RYHEM MONTAGUE

45. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 44 as though more fully set forth herein.

46. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

47. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and /

or servants and negligently retained its employees, agents, and / or servants in the proper and lawful stopping, questioning, detention and arrest of individuals.

48. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence, plaintiff RYHEM MONTAGUE was denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in sums which exceed the jurisdiction of all lower Courts.

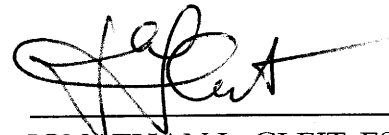
49. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First Second and Third Causes of Action, and inclusive of punitive damages, and attorneys

fees as permitted by statute, in sums which exceed the jurisdiction of all lower Courts,

together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
October 19, 2017



By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff
RYHEM MONTAGUE
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To:
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P.O. Mariela Ortega Shield No. 2975 and P.O. Daniel Blake Shield No 7518
both of the PSA 7 737 Melrose Avenue, Bronx, NY 10451

PLAINTIFF'S VERIFICATION

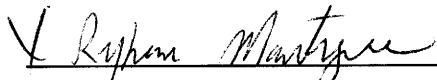
RYHEM MONTAGUE affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.



RYHEM MONTAGUE